

**TATA MOTORS LIMITED**

Registered Office: Bombay House, 24 Homi Mody Street, Mumbai 400 001, Maharashtra

DELIVERY ADDRESS :Tata Motors Ltd. Uttaranchal,CV UTK Direct Mat,Auto Division,UTTARANCHAL,263153 ,PANTNAGAR,Uttarakhand

IMPORTS CONTRACT

TO:M/S SUPPLIER CODE: T90060
TATA LTD
18, GROSVENOR PLACE LONDON SW 1 X 7 HS
UNITED KINGDOM
020 7235 8281
United Kingdom (As Buying Agent) 020
7235 8727 /

TO:M/S MANUFACTURER CODE:091090
OPMOBILITY C-POWER POLAND SP.Z 0.0.
UL. BUDOWLANA 28; 20-469 POLAND
48814450600
LUBLIN
Poland

CONTRACT INFO & CASE MARKING:

PO No : TUAC32609V
PO Date : 12.05.2026
Quotation Ref : TUAC32592V
Quotation Date: 08.05.2026
PR No : 3120087881
Final Dest :
Made In : Poland

OTHER DETAILS :

Import Licence No: FFF
Currency : EUR
Country Of Origin: Poland
Port Of Entry : Mumbai
Freight/Insurance: Pre Paid/By Addressee
Item Incoterms : FCA
Mode Of Dispatch : Air/Sea

Item No : 00010
Tata Motors Code : 572415250101
Material Desc : ADM COMPACT INTRA/DOSER
PUMP

Qty&Unit : 1000 EA
Net Price/Unit: 97.05 EUR/1 EA
HS Code : 8413.50.10
Total Price : 97,050.00 EUR
Delivery Date : 01.09.2026

Delivery schedule;

01.09.2026: 200 Nos,01.10.2026: 300 Nos,01.12.2026: 200 Nos

Total Order Value:FCA 97,050.00 EUR

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Remarks :TERMS AND CONDITION AS PER ENCLOSED
ANNEXURE A
Payment Terms : Payment due 60 days from
invoice # GR bsd accpt
Supplier POT : Net 30 days

Checked By
TATA MOTORS LIMITED(Formerly Known as
TML Commercial Vehicles Ltd)

TERMS AND CONDITIONS FOR SUPPLY OF ORDERED ITEMS

Annexure - A to above Purchase Order.

Short Shipment:

If an item is short shipped, but is invoiced, then Tata Motors has to pay customs duty on the item, since such shortage is noticed only at Tata Motors' works. Besides, Tata Motors cannot claim refund of customs duty. Hence, in such cases, along with replacing the item on free of charges (on DDP Plant basis).

Packing & Packing List:

Supplier shall provide seaworthy / airworthy long lasting packing depending on mode of dispatch for all the machine / equipment in wooden boxes to withstand multiple handling at different ports and tropical conditions.

Supplier shall be solely responsible for packing of the equipment, transportation of packed cases, loading / unloading of packed cases and all documentation required at the port of embarkation, like invoice, bill of lading, certificate of origin, packing list, etc.

Any damages resulting due to inadequate packing and thereby any time lost to this count as detention time shall be borne by the supplier. Adequate care against, surface rusting is essential, it is the supplier's responsibility to ensure receipt of rust free machine / equipment reaches at Tata Motors plant.

Supplier shall provide complete case-wise packing list indicating details of goods packed in each case, giving details such as Part No. Description, Case No., case weight and case dimensions at least one week before receipt of the consignment by Tata Motors Ltd.

Phytosanitary certificate:

Supplier shall ensure, to provide phytosanitary certificate as all consignment being imported into India by Air & Sea requires a Phytosanitary certificate from the country of origin if articles have been packed with packing materials of plant origin used for packing which include hay, straw, wood shaving, wood chips, saw dust, wood waste, wooden pallets, dunnage mats, wooden packages, coir pith, peat or shagnum moss etc. Or Supplier can use Press pallets instead of wooden pallets for packing.

Liquidated Damages for delay in delivery:

Delivery is the essence of the contract. Tata Motors Ltd. & Supplier shall ensure that agreed delivery is not affected owing to communication delay at any stage.

If, Supplier does not deliver the goods with in the agreed period, Tata Motors Ltd. reserves the right to recover the damages from supplier 0.5% of the Purchase Order value per week of the delay subjected to maximum of 5%. Such penalty will be either deducted from the balance amount due to the supplier, either partly or wholly, the supplier shall be liable to pay such amount which is due under this clause.

If the delay is more than 3 months, then Tata Motors Ltd. has the right to cancel the order without any liability to Tata Motors Ltd.

Marking:

The supplier shall also ensure that three sides and top of the packages shall bear the case marks as per purchase order and such marks shall appear clearly visible (letters in English in bold) and indelible paint.

Invoice:

Supplier shall ensure that description of the Invoice is exactly as indicated in our Purchase Order.

In case of Part-Shipment, Supplier shall give in Order Confirmation, Schedule of Shipments details indicating Contents, Values and Description proposed in the Invoices.

Supplier shall send Invoice in Draft form to the Buyer for his verification at least 5 days prior to shipment.

Insurance:

Supplier shall provide following shipment details at least 5 days before shipment to enable Tata Motors to arrange insurance of customs duty such as: Shipping lines Vogue No. , Details of Bill of Lading, Net weight and Gross weight and case dimensions & total invoiced value of shipment.

Force Majeure:

If the parties are not able to perform the Contract on account of circumstances absolutely beyond their control due to acts of God or nature or the overriding law or the governmental mandates and actions, including war, the parties are not liable to pay compensation to the other, arising out of non performance of the Contract.

Arbitration:

Any dispute or differences arising out of or in connection with the Import Purchase order/Contract or the implementation of the provisions of the Import Purchase order/Contract which cannot be settled amicably shall be referred to arbitration in accordance with the rules of the Indian Arbitration Act 1996. The arbitration shall be conducted in India in accordance with the rules of the Indian Arbitration Act. The language of the arbitration shall be the English Language. The arbitration proceedings including the making of the award of the arbitrators shall be final and binding upon the Parties. Notwithstanding the foregoing, as per written advice from Tata Motors, Supplier shall continue to implement the Import Purchase order/Contract during the pendency of any dispute.

Jurisdiction:

Since the final landing point of the supplied goods is India, all engagements shall be governed under Indian law, with arbitration under the Indian Arbitration Act, with seat and venue being Mumbai and /or the courts at Mumbai having exclusive jurisdiction, and that the supplier agrees to the same and shall waive any right to question the choice of jurisdiction.

Shipping instruction:

In case of Air Shipment: Supplier is requested to arrange to dispatch the consignment through our nominated cargo forwarder only. In case supplier dispatched the cargo directly through their nominated forwarder without informing Tata Motors, then Tata Motors has the right to abandon the cargo and / or supplier will not be paid for such consignments.

General Remarks:

All documents to indicate Importer/ Exporter Code No AALCT0864B dated 17.03.2025. If in case the material is rejected by Tata Motors Ltd, the supplier will have to replace the item(s) free of charge and will also have to bear the customs duty, freight and insurance charges as applicable to the particular consignment. No shipment of any type should be undertaken before getting instruction from Tata Motors Ltd. Mumbai.

Documentation:

Supplier shall provide all the following documents at least 7 days prior to arrival of vessel in India for sea shipment or 1 days prior to landing in India in case of air shipment.

- 1) Invoice as per Purchase Order descriptions
- 2) Airway Bill / Bill of lading (in case of C&F / CIF / DAP / DDP / DDU)
- 3) Casewise packing list indicating casewise contents in each case.
- 4) Phytosanitary Certificate
- 5) Certificate of Country of Origin
- 6) FTA / CEPA (if applicable)

In the event TATA Motors has to pay penalty / demurrage charges / detention charges on account of

- faulty / insufficient documents from the supplier
- Or

- non-receipt of any of the documents in time

as specified above, then penalty / demurrage charges / detention charges shall be reimbursed by the supplier to TML.